



LONE STAR FORESTRY, LLC

1223 11TH STREET, HUNTSVILLE, TEXAS 77340

936-295-2100 Office 936-295-2106 Fax

Joseph L. Pfluger

Wayne S. Pfluger

Justin W. Hill

Vernon & Diane Madden
151 Azales St.
Sugar Land, TX 77478

July 12, 2024

Mr. Madden:

Following is your copy of the package that was delivered on your behalf to the Polk County Appraisal District. This package includes a cover letter to the Appraisal District, completed Applications for 1-d-1 (Open-Space) Timber Land Appraisal and a Forest Management Plan. These are all your copies and require no further action from you.

Keep in mind this is merely an application for this special appraisal treatment of your property. We make no guarantees that this appraisal status will be granted. That decision is ultimately made by an appraiser at your County Appraisal District.

The Forest Management Plan includes a worksheet for your use in tracking your Forest Management Activities. We strongly suggest you keep a record of practices you perform on the property. The Appraisal District looks closely at the activity history in granting the special appraisal status.

Please note that if there is a landowner name change, acreage change or land-use change, you will need to reapply with your respective Appraisal District by April 30th of the following year.

Should you have any other questions or concerns or if I may be of any other assistance, please do not hesitate to call me at 936-295-2100.

Kindest Regards,

Joe Pfluger

Joe Pfluger
Forester

From: [Michael Griffiths](#)
To: [Joe Pfluger](#)
Subject: RE: 2024 Forest Management Plan - Madden
Date: Friday, July 12, 2024 2:14:32 PM

Good afternoon, Joe,

The timber exemptions have been applied to all of the accounts listed in your attachments.

Hope this helps.

Michael Griffiths RPA, CCA

Deputy Chief Appraiser

Appraisal Department

Phone: 936-327-2174 | Fax: 936-327-2545

michael.griffiths@polkcad.org | www.polkcad.org

Polk Central Appraisal District | 114 Matthews | Livingston, Tx 77351

NOTICE: This communication may contain privileged or other confidential information (including attachments and links). If you are not the intended recipient or believe that you have received this communication in error, please do not print, copy, retransmit, disseminate, or otherwise use the information. Also, please indicate to the sender that you have received this communication in error, and delete the copy and attachments that you received.

From: Joe Pfluger <joe@lsforestry.com>
Sent: Friday, July 12, 2024 1:39 PM
To: Michael Griffiths <michael.griffiths@polkcad.org>
Subject: FW: 2024 Forest Management Plan - Madden

Michael,

Please see the attachment and corresponding email below.

Thanks,

Joe Pfluger, ACF

Lone Star Forestry, LLC

1223 11th St.

Huntsville, TX 77340

www.LSForestry.com

Office: 936-295-2100

Cell: 936-689-1584

Fax: 936-295-2106



From: Joe Pfluger

Sent: Friday, June 28, 2024 2:27 PM

To: Chad Hill <chad.hill@polkcad.org>

Subject: 2024 Forest Management Plan - Madden

Justin,

Please review the attachments containing a cover letter, 1-d-1 application/s and forest management plan for the Madden/Haverland tract located in Polk County.

PID's – 25858, 70384 & 70774

If you could please digitally or physically stamp the front pages of the cover letter, application/s and plan as “Received” and return to me at your earliest convenience, we use this as a receipt of submission when we return all documentation back to the landowner.

Thanks,

Joe Pfluger, ACF

Lone Star Forestry, LLC

1223 11th St.

Huntsville, TX 77340

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936-295-2100 Office 936-295-2106 Fax

Joseph L. Pfluger

Wayne S. Pfluger

Justin W. Hill

Polk County Appraisal District
Attn: Chad Hill
114 Mathews Street
Livingston, TX 77351

June 28, 2024

Mr. Hill:

Following you should find applications for 1-d-1 (Open-Space) Timber Land Appraisal and a Forest Management Plan for Property ID numbers: 25858, 70384 & 70774. This tract, located in the W. P. Valentine Survey, A-591 and the J. Parsons Survey, A-481, in Polk County, Texas is owned and operated by Vernon Madden, Michael Madden & Diane Haverland.

The landowner's intent for this property is to continue managing resources for the continued production of agriculture products.

Should you have any questions please feel free to contact me at 936-295-2100.

Thank You,

Joe Pfluger

Joe Pfluger
Forester

Application for 1-d-1 (Open-Space) Timberland Appraisal

Form 50-167

Tax Year 2024

Polk County Appraisal District

25858

Appraisal District's Name

Appraisal District Account Number (if known)

GENERAL INFORMATION: Texas Constitution, Article VIII, Section 1-d-1, and Tax Code, Chapter 23, Subchapter E, provide for appraisal of open-space land devoted principally to producing timber and forest products based on its capacity to produce these products.

FILING INSTRUCTIONS: This form must be filed with the appraisal district office in each county in which the property is located. **Do not file this document with the Texas Comptroller of Public Accounts.**

SECTION 1: Property Owner/Applicant

The applicant is the following type of property owner:

☒ Individual ☐ Partnership ☐ Corporation ☐ Other (specify): _____

Vernon Madden, Michael Madden & Diane Haverland

Name of Property Owner

Physical Address, City, State, ZIP Code

281-494-2592

csmadden4@gmail.com

Primary Phone Number (area code and number)

Email Address*

151 Azalea St., Sugar Land, TX 77478

Mailing Address, City, State, ZIP Code (if different from the physical address provided above)

SECTION 2: Authorized Representative

If you are an individual property owner filing this application on your own behalf, skip to Section 3; all other applicants are required to complete Section 2. Please indicate the basis for your authority to represent the property owner in filing this application:

☐ Officer of the company ☐ General Partner of the company ☐ Attorney for property owner
☐ Agent for tax matters appointed under Tax Code Section 1.111 with completed and signed Form 50-162
☒ Other and explain basis: Property Consultant

Joe Pfluger

Name of Authorized Representative

Consulting Forester

936-295-2100

joe@lsforestry.com

Title of Authorized Representative

Primary Phone Number (area code and number)

Email Address*

1223 11th Street, Huntsville, TX, 77340

Mailing Address, City, State, ZIP Code

SECTION 3: Property Description and Information

Provide the descriptive information requested below for the property that is the subject of this application or attach last year's tax statement, notice of appraised value or other correspondence identifying the property.

40.5

Number of Acres (subject to this application)

Legal Description, abstract numbers, field numbers and/or plat numbers:

W P VALENTINE SURVEY, ABST 591, TRACT 3
GEO ID: 10591000300

SECTION 3: Property Description and Information (concluded)

Select the appropriate box in response to each question below.

1. Has the ownership of the property changed since Jan. 1 of last year or since the last application was submitted? ☐ Yes ☒ No
If yes, the new owner must complete all applicable questions.
2. Last year, was timberland appraisal allowed on this property by the chief appraiser of this appraisal district? ☒ Yes ☐ No
If no, all applicable questions must be completed.
If yes, complete only those parts of Section 4 that have changed since the earlier application or any information in Section 4 requested by the chief appraiser.
3. Is this property located within the corporate limits of a city or town? ☐ Yes ☒ No

SECTION 4: Property Use

Provide complete answers to the following questions. List the agricultural use of the property according to the agricultural land categories listed in the preceding paragraph. Divide the total acreage according to individual uses to which the land is principally devoted.

1. Describe the current and past timber production or agricultural uses of this property as described above, starting with the current year and working back 5 years or until 5 out of 7 years of agricultural use is shown. Five years of continuous agricultural use may be required if the land is located within the corporate limits of a city or town.

Year	Agricultural Use Category of Land (List all that apply)	Acres Principally Devoted to Agricultural Use
Current	Timber Production	40.5
1	Timber Production	40.5
2	Timber Production	40.5
3	Timber Production	40.5
4	Timber Production	40.5
5	Timber Production	40.5
6	Timber Production	40.5
7	Timber Production	40.5

2. List the total number of acres of the property described in Section 3 in each of the following forest types:

Forest Type	Number of Acres
Pine forest (<i>Pine and other softwood trees make up at least two-thirds of the free-to-grow trees.</i>)	
Hardwood forest (<i>Hardwood trees are at least two-thirds of the free-to-grow trees.</i>)	40.5
Mixed Hardwood forest (<i>Neither soft nor hardwood trees make up more than two-thirds of the free-to-grow trees.</i>)	

3. If the property is now used for any nonagricultural activities, list all nonagricultural uses and the number of acres devoted to each use. Attach a list if the space is not sufficient.

Nonagricultural Use	Number of Acres

SECTION 5: Certification and Signature

NOTICE REGARDING PENALTIES FOR MAKING OR FILING AN APPLICATION CONTAINING A FALSE STATEMENT: If you make a false statement on this form, you could be found guilty of a Class A misdemeanor or a state jail felony under Penal Code Section 37.10.

"I, Joe Pfluger, Forester, swear or affirm the following:

Printed Name of Property Owner or Authorized Representative

1. that each fact contained in this application is true and correct;
2. that the property described in this application meets the qualifications under Texas law for the special appraisal claimed;
3. that I have read and understand the *Notice Regarding Penalties for Making or Filing an Application Containing a False Statement.*"

sign
here ➡

Joe Pfluger

Signature of Property Owner or Authorized Representative

6/21/2024

Date

* May be confidential under Government Code §552.137; however, by including the email address on this form, you are affirmatively consenting to its release under the Public Information Act.

Important Information

GENERAL INFORMATION

While land must currently be devoted principally to the production of timber or forest products to qualify for timberland appraisal, the requirement to show a history of use for five of the previous seven years can be satisfied by timber production or by agricultural use.

Agricultural use includes, but is not limited to, the following activities: (1) cultivating the soil; (2) producing crops for human food, animal feed, or planting seed or for the production of fibers; (3) floriculture, viticulture and horticulture; (4) raising or keeping livestock; (5) raising or keeping exotic animals or fowl for the production of human food or fiber, leather, pelts or other tangible products having a commercial value; (6) planting cover crops or leaving land idle for the purpose of participating in a governmental program provided the land is not used for residential purposes or a purpose inconsistent with agricultural use or leaving the land idle in conjunction with normal crop or livestock rotation procedures; (7) producing or harvesting logs and posts used for construction or repair of fences, pens, barns or other agricultural improvements on adjacent open-space land having the same owner and devoted to a different agricultural use; (8) wildlife management; and (9) beekeeping.

Agricultural land use categories include: (1) irrigated cropland; (2) dry cropland; (3) improved pastureland; (4) native pastureland; (5) orchard; (6) wasteland; (7) timber production; (8) wildlife management; and (9) other categories of land that are typical in the area.

APPLICATION DEADLINES

The completed application must be filed with the chief appraiser before May 1 of the year for which timberland appraisal is requested. If the application is approved, a new application is not required in later years unless the land ownership changes, eligibility ends or the chief appraiser requests a new application.

A late application may be filed up to midnight the day before the appraisal review board approves appraisal records for the year, which usually occurs in July. If a late application is approved, a penalty will be applied in an amount equal to 10 percent of the difference between the amount of tax imposed on the property and the amount that would be imposed if the property were taxed at market value.

DUTY TO NOTIFY AND PENALTIES:

The property owner must notify the chief appraiser no later than the April 30 following the change in use or eligibility. A change of land use for all or part of the property will trigger substantial additional tax plus interest (a rollback tax). Payment of a penalty may also be required for failure to notify the chief appraiser of a change in timber production or agricultural use or qualification. Notice must be delivered to the chief appraiser if:

- the property stops being used for timber production (e.g., voluntarily decide to stop actively managing the land to produce income);
- category of land use changes (e.g., from growing timber to grazing cattle); or
- the land is used for something other than agriculture (e.g., to build a shopping center on most of the land).

OTHER IMPORTANT INFORMATION

If the initial application form does not contain all essential information, the chief appraiser may request additional information that is necessary to determine whether the land qualifies for special appraisal. The chief appraiser may disapprove the application and request additional information. The chief appraiser may deny the application and that determination may be protested to the county appraisal review board in a timely manner. If the chief appraiser requests additional information from an applicant, the information must be furnished within 30 days after the date of the request, or the application is denied. For good cause shown, the chief appraiser may extend the deadline for furnishing the information by written order for a single 15-day period.

Application for 1-d-1 (Open-Space) Timberland Appraisal

Form 50-167

Tax Year 2024

Polk County Appraisal District

70384

Appraisal District's Name

Appraisal District Account Number (if known)

GENERAL INFORMATION: Texas Constitution, Article VIII, Section 1-d-1, and Tax Code, Chapter 23, Subchapter E, provide for appraisal of open-space land devoted principally to producing timber and forest products based on its capacity to produce these products.

FILING INSTRUCTIONS: This form must be filed with the appraisal district office in each county in which the property is located. **Do not file this document with the Texas Comptroller of Public Accounts.**

SECTION 1: Property Owner/Applicant

The applicant is the following type of property owner:

☒ Individual ☐ Partnership ☐ Corporation ☐ Other (specify): _____

Vernon Madden, Michael Madden & Diane Haverland

Name of Property Owner

Physical Address, City, State, ZIP Code

281-494-2592

csmadden4@gmail.com

Primary Phone Number (area code and number)

Email Address*

151 Azalea St., Sugar Land, TX 77478

Mailing Address, City, State, ZIP Code (if different from the physical address provided above)

SECTION 2: Authorized Representative

If you are an individual property owner filing this application on your own behalf, skip to Section 3; all other applicants are required to complete Section 2. Please indicate the basis for your authority to represent the property owner in filing this application:

☐ Officer of the company ☐ General Partner of the company ☐ Attorney for property owner
☐ Agent for tax matters appointed under Tax Code Section 1.111 with completed and signed Form 50-162
☒ Other and explain basis: Property Consultant

Joe Pfluger

Name of Authorized Representative

Consulting Forester

936-295-2100

joe@lsforestry.com

Title of Authorized Representative

Primary Phone Number (area code and number)

Email Address*

1223 11th Street, Huntsville, TX, 77340

Mailing Address, City, State, ZIP Code

SECTION 3: Property Description and Information

Provide the descriptive information requested below for the property that is the subject of this application or attach last year's tax statement, notice of appraised value or other correspondence identifying the property.

3.5

Number of Acres (subject to this application)

Legal Description, abstract numbers, field numbers and/or plat numbers:

ABST 481 J PARSONS SURVEY TRACT 6
Geographic ID: 10481000700

SECTION 3: Property Description and Information (concluded)

Select the appropriate box in response to each question below.

1. Has the ownership of the property changed since Jan. 1 of last year or since the last application was submitted? ☐ Yes ☒ No
If yes, the new owner must complete all applicable questions.
2. Last year, was timberland appraisal allowed on this property by the chief appraiser of this appraisal district? ☒ Yes ☐ No
If no, all applicable questions must be completed.
If yes, complete only those parts of Section 4 that have changed since the earlier application or any information in Section 4 requested by the chief appraiser.
3. Is this property located within the corporate limits of a city or town? ☐ Yes ☒ No

SECTION 4: Property Use

Provide complete answers to the following questions. List the agricultural use of the property according to the agricultural land categories listed in the preceding paragraph. Divide the total acreage according to individual uses to which the land is principally devoted.

1. Describe the current and past timber production or agricultural uses of this property as described above, starting with the current year and working back 5 years or until 5 out of 7 years of agricultural use is shown. Five years of continuous agricultural use may be required if the land is located within the corporate limits of a city or town.

Year	Agricultural Use Category of Land (List all that apply)	Acres Principally Devoted to Agricultural Use
Current	Timber Production	3.5
1	Timber Production	3.5
2	Timber Production	3.5
3	Timber Production	3.5
4	Timber Production	3.5
5	Timber Production	3.5
6	Timber Production	3.5
7	Timber Production	3.5

2. List the total number of acres of the property described in Section 3 in each of the following forest types:

Forest Type	Number of Acres
Pine forest (<i>Pine and other softwood trees make up at least two-thirds of the free-to-grow trees.</i>)	
Hardwood forest (<i>Hardwood trees are at least two-thirds of the free-to-grow trees.</i>)	3.5
Mixed Hardwood forest (<i>Neither soft nor hardwood trees make up more than two-thirds of the free-to-grow trees.</i>)	

3. If the property is now used for any nonagricultural activities, list all nonagricultural uses and the number of acres devoted to each use. Attach a list if the space is not sufficient.

Nonagricultural Use	Number of Acres

SECTION 5: Certification and Signature

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"I, Joe Pfluger, Forester, swear or affirm the following:
Printed Name of Property Owner or Authorized Representative

1. that each fact contained in this application is true and correct;
2. that the property described in this application meets the qualifications under Texas law for the special appraisal claimed;
3. that I have read and understand the *Notice Regarding Penalties for Making or Filing an Application Containing a False Statement.*"

sign
here ➡

Joe Pfluger

Signature of Property Owner or Authorized Representative

6/21/2024

Date

* May be confidential under Government Code §552.137; however, by including the email address on this form, you are affirmatively consenting to its release under the Public Information Act.

Important Information

GENERAL INFORMATION

While land must currently be devoted principally to the production of timber or forest products to qualify for timberland appraisal, the requirement to show a history of use for five of the previous seven years can be satisfied by timber production or by agricultural use.

Agricultural use includes, but is not limited to, the following activities: (1) cultivating the soil; (2) producing crops for human food, animal feed, or planting seed or for the production of fibers; (3) floriculture, viticulture and horticulture; (4) raising or keeping livestock; (5) raising or keeping exotic animals or fowl for the production of human food or fiber, leather, pelts or other tangible products having a commercial value; (6) planting cover crops or leaving land idle for the purpose of participating in a governmental program provided the land is not used for residential purposes or a purpose inconsistent with agricultural use or leaving the land idle in conjunction with normal crop or livestock rotation procedures; (7) producing or harvesting logs and posts used for construction or repair of fences, pens, barns or other agricultural improvements on adjacent open-space land having the same owner and devoted to a different agricultural use; (8) wildlife management; and (9) beekeeping.

Agricultural land use categories include: (1) irrigated cropland; (2) dry cropland; (3) improved pastureland; (4) native pastureland; (5) orchard; (6) wasteland; (7) timber production; (8) wildlife management; and (9) other categories of land that are typical in the area.

APPLICATION DEADLINES

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- category of land use changes (e.g., from growing timber to grazing cattle); or
- the land is used for something other than agriculture (e.g., to build a shopping center on most of the land).

OTHER IMPORTANT INFORMATION

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Application for 1-d-1 (Open-Space) Timberland Appraisal

Form 50-167

Tax Year 2024

Polk County Appraisal District

70774

Appraisal District's Name

Appraisal District Account Number (if known)

GENERAL INFORMATION: Texas Constitution, Article VIII, Section 1-d-1, and Tax Code, Chapter 23, Subchapter E, provide for appraisal of open-space land devoted principally to producing timber and forest products based on its capacity to produce these products.

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SECTION 1: Property Owner/Applicant

The applicant is the following type of property owner:

☒ Individual ☐ Partnership ☐ Corporation ☐ Other (specify): _____

Vernon Madden, Michael Madden & Diane Haverland

Name of Property Owner

Physical Address, City, State, ZIP Code

281-494-2592

csmadden4@gmail.com

Primary Phone Number (area code and number)

Email Address*

151 Azalea St., Sugar Land, TX 77478

Mailing Address, City, State, ZIP Code (if different from the physical address provided above)

SECTION 2: Authorized Representative

If you are an individual property owner filing this application on your own behalf, skip to Section 3; all other applicants are required to complete Section 2. Please indicate the basis for your authority to represent the property owner in filing this application:

☐ Officer of the company ☐ General Partner of the company ☐ Attorney for property owner

☐ Agent for tax matters appointed under Tax Code Section 1.111 with completed and signed Form 50-162

☒ Other and explain basis: Property Consultant

Joe Pfluger

Name of Authorized Representative

Consulting Forester

936-295-2100

joe@lsforestry.com

Title of Authorized Representative

Primary Phone Number (area code and number)

Email Address*

1223 11th Street, Huntsville, TX, 77340

Mailing Address, City, State, ZIP Code

SECTION 3: Property Description and Information

Provide the descriptive information requested below for the property that is the subject of this application or attach last year's tax statement, notice of appraised value or other correspondence identifying the property.

12.38

Number of Acres (subject to this application)

Legal Description, abstract numbers, field numbers and/or plat numbers:

ABST 591 W P VALENTINE SURVEY TRACT 5
Geographic ID: 10591000500

SECTION 3: Property Description and Information (concluded)

Select the appropriate box in response to each question below.

1. Has the ownership of the property changed since Jan. 1 of last year or since the last application was submitted? ☐ Yes ☒ No
If yes, the new owner must complete all applicable questions.
2. Last year, was timberland appraisal allowed on this property by the chief appraiser of this appraisal district? ☒ Yes ☐ No
If no, all applicable questions must be completed.
If yes, complete only those parts of Section 4 that have changed since the earlier application or any information in Section 4 requested by the chief appraiser.
3. Is this property located within the corporate limits of a city or town? ☐ Yes ☒ No

SECTION 4: Property Use

Provide complete answers to the following questions. List the agricultural use of the property according to the agricultural land categories listed in the preceding paragraph. Divide the total acreage according to individual uses to which the land is principally devoted.

1. Describe the current and past timber production or agricultural uses of this property as described above, starting with the current year and working back 5 years or until 5 out of 7 years of agricultural use is shown. Five years of continuous agricultural use may be required if the land is located within the corporate limits of a city or town.

Year	Agricultural Use Category of Land (List all that apply)	Acres Principally Devoted to Agricultural Use
Current	Timber Production	12.38
1	Timber Production	12.38
2	Timber Production	12.38
3	Timber Production	12.38
4	Timber Production	12.38
5	Timber Production	12.38
6	Timber Production	12.38
7	Timber Production	12.38

2. List the total number of acres of the property described in Section 3 in each of the following forest types:

Forest Type	Number of Acres
Pine forest (<i>Pine and other softwood trees make up at least two-thirds of the free-to-grow trees.</i>)	
Hardwood forest (<i>Hardwood trees are at least two-thirds of the free-to-grow trees.</i>)	12.38
Mixed Hardwood forest (<i>Neither soft nor hardwood trees make up more than two-thirds of the free-to-grow trees.</i>)	

3. If the property is now used for any nonagricultural activities, list all nonagricultural uses and the number of acres devoted to each use. Attach a list if the space is not sufficient.

Nonagricultural Use	Number of Acres

SECTION 5: Certification and Signature

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"I, Joe Pfluger, Forester, swear or affirm the following:

Printed Name of Property Owner or Authorized Representative

- that each fact contained in this application is true and correct;
- that the property described in this application meets the qualifications under Texas law for the special appraisal claimed;
- that I have read and understand the *Notice Regarding Penalties for Making or Filing an Application Containing a False Statement.*"

sign
here ➡

Joe Pfluger

Signature of Property Owner or Authorized Representative

6/21/2024

Date

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Important Information

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Agricultural use includes, but is not limited to, the following activities: (1) cultivating the soil; (2) producing crops for human food, animal feed, or planting seed or for the production of fibers; (3) floriculture, viticulture and horticulture; (4) raising or keeping livestock; (5) raising or keeping exotic animals or fowl for the production of human food or fiber, leather, pelts or other tangible products having a commercial value; (6) planting cover crops or leaving land idle for the purpose of participating in a governmental program provided the land is not used for residential purposes or a purpose inconsistent with agricultural use or leaving the land idle in conjunction with normal crop or livestock rotation procedures; (7) producing or harvesting logs and posts used for construction or repair of fences, pens, barns or other agricultural improvements on adjacent open-space land having the same owner and devoted to a different agricultural use; (8) wildlife management; and (9) beekeeping.

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- the property stops being used for timber production (e.g., voluntarily decide to stop actively managing the land to produce income);
- category of land use changes (e.g., from growing timber to grazing cattle); or
- the land is used for something other than agriculture (e.g., to build a shopping center on most of the land).

OTHER IMPORTANT INFORMATION

If the initial application form does not contain all essential information, the chief appraiser may request additional information that is necessary to determine whether the land qualifies for special appraisal. The chief appraiser may disapprove the application and request additional information. The chief appraiser may deny the application and that determination may be protested to the county appraisal review board in a timely manner. If the chief appraiser requests additional information from an applicant, the information must be furnished within 30 days after the date of the request, or the application is denied. For good cause shown, the chief appraiser may extend the deadline for furnishing the information by written order for a single 15-day period.

FOREST MANAGEMENT PLAN

PREPARED FOR:

VERNON MADDEN, MICHAEL MADDEN
& DIANE HAVERLAND

56.38 ACRES

W. P. VALENTINE SURVEY, A-591
J. PARSONS SURVEY, A-481

POLK COUNTY, TEXAS
94°45'52"W 31°0'30"N



Prepared By:
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SIGNED: Joe Pfluger
JOE PFLUGER, FORESTER
DATE: JUNE 21, 2024

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INTRODUCTION

This forest management plan is written to provide recommendations and guidance for managing the forest and variety of other natural resources that are located on that certain 56.38-acre tract located in the W. P. Valentine Survey, A-591 and the J. Parsons, A-481, in Polk County, Texas which is owned and operated by Vernon Madden, Michael Madden & Diane Haverland. A detailed acreage analysis breaking down the tract into the respective property ID numbers and land use categories can be found on page 20.

A ground reconnaissance of the property was conducted on June 20, 2024 to evaluate timber assets located thereon.



LEFT & BELOW: Native Mixed Hardwoods that Buffer Creeks that Drain into McMahon Creek on the Madden Tract.



FOREST MANAGEMENT OBJECTIVES - GENERAL

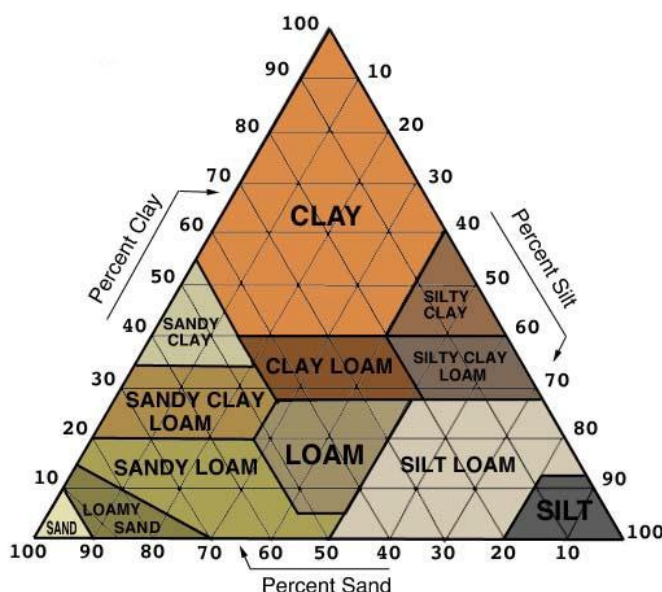
The following general objectives, in no particular order, are accounted for or are the underlying short- and long-term goals for the property:

1. Maintain and improve the productivity of the forestland.
2. Grow tree species which will provide raw materials that can be sold for the production of forest products.
3. Employ the use of cultural treatments, when feasible, on forest land sites and thus aid in the production higher quality forest products.
4. Improve the forestland for the future.
5. Develop and maintain favorable food and cover conditions for game and non-game wildlife species.
6. Conserve the soil resource and strive to prevent erosion caused by wind and rain.
7. Protect, enhance and conserve water resources.
8. Protect, manage and or preserve unique and rare areas and species.
9. Enhance the recreational resources and value found in a forested setting.
10. Enhance and improve the aesthetic value of forested areas.
11. Provide for the protection of forest resources against disease, insect and wildfire occurrence.
12. Manage and improve the property for all attributes and opportunities that exist in a forest ecosystem of interest to the owner.
13. Manage resources in a manner that an Appraisal Status can be gained or maintained to maximize tax savings with local Appraisal Districts.

SOILS

Soils are the building block in the growing of any type of plant. Whether it is crops for sale, grasses for grazing, gardens for consumption or trees and flowers for aesthetics, a knowledge of the soils and their capabilities on a property is essential to one's successful planning and growing of any plant species.

Soil is composed of various concentrations of sand, silt and clay. The amount of these concentrations gives a soil its basic characteristics. Using the diagram below a soil consisting of 40% sand, 40% silt and 20% clay would be considered a Loam. A soil consisting of 60% sand, 30% silt and 10% clay would be a Sandy Loam.



Soil Triangle

According to information gained from data published by the Natural Resource Conservation Service the soil associations on this property consist of:

- CIB - Colita-Laska complex, 1 to 5 percent slopes
- DkB - Diboll-Keltys complex, 1 to 5 percent slopes
- HatA - Hatliff-Pluck-Kian complex, 0 to 1 percent

These soils are moderate to ideal for the growth of loblolly pine. The site index rating for loblolly pine is 79 to 95 feet on this/these soil(s). Site Index is a measure of a soil's productivity. It is the average height that a particular tree species will reach in 50 years growing in that soil.

Soil maps and more in depth soil information and site index tables are located at the end of this report.

ENDANGERED, THREATENED AND PROTECTED SPECIES



Red-cockaded woodpecker
(*Leuconotopicus borealis*)



Bald Eagle
(*Haliaeetus leucocephalus*)

The recognition, management and protection of endangered, threatened and protected species is a responsibility of all landowners. The U.S. Fish & Wildlife Service, on the federal level and the Texas Parks & Wildlife Department, on the state level, are responsible for identifying and listing threatened Vertebrates, Invertebrates and Vascular Plants that have a potential or known presence within the county. Listed species and their status are periodically updated and listed by county or area at the following sites:

www.fws.gov/endangered/

www.tpwd.state.tx.us/huntwild/wild/species/endang/

Endangered, threatened and protected species have certain habitat requirements which can be very specific or quite broad.

A couple of the more notable species in the East Texas area include the Red-cockaded woodpecker which is an endangered species and the Bald Eagle, a protected species.

At the time of this report and to the best of our knowledge no threatened or endangered species or their sign were observed on the property. We are not authorities in these matters and should the landowner encounter a species they believe may be endangered or threatened we recommend contacting a biologist with the Texas Parks & Wildlife Department.

WILDLIFE MANAGEMENT

Forest management practices in many instances improve wildlife diversity and habitat. Silvicultural practices, activities conducted for the cultivation of trees, such as prescribed burning, timber thinning and tree planting, when correctly implemented, will enhance wildlife habitat for many wildlife species.

Other practices, in addition to those designed for silvicultural purposes, work well in a forest setting and can greatly enhance wildlife habitat and diversity.

For white tailed deer management, it is recommended that food plots occupy 2 to 5% of the acreage for supplemental feeding. It is recommended that a landowner plant both cool season and warm season plots. Cool season plots include grains such as oats and wheat along with crimson or arrowleaf clover. Warm season plots generally consist of cowpeas, turnips and alyce clover. Soil tests to determine the best planting and fertilizing mix on a property is highly recommended. Food plots are only a supplemental source for feeding during periods of shortage in a given year. There is no substitution to quality habitat management.

Food plot in forest setting



Wood ducks at nesting box

Other practices such as providing additional supplies of water, installation of nesting boxes, leaving cavity trees for nesting sites and the creation of brush piles to provide additional cover and shelter are all excellent additional wildlife management suggestions.

The landowner's wildlife management objectives should be a consideration when making decisions regarding forest management treatments.

CULTURAL SITES AND FORESTS OF RECOGNIZED IMPORTANCE

Good land management includes the stewardship of sites of special interest: biological, geological or cultural.

The most common cultural sites that are encountered in the forests of East Texas are Native American sites, old home sites and cemeteries. Other sites might be of cultural or archeological significance as this is a broad and varied topic. When encountered on a property these sites should be documented and treated with extra care and attention.

Certain forests have special qualities that give them a status of "recognized importance". Examples of these forests include areas of older, larger trees; areas of significant aesthetic beauty; or areas of rare and/or unique habitat.

While inspecting this property and in our interview with the landowner no cultural sites or forests of recognized importance were encountered or discussed.

FOREST PESTS

Forest Pests and Invasive Species costs forest landowners and our economy a substantial sum annually. Forested properties should be monitored for possible outbreaks of these detrimental species. If detected, suppression or eradication measures should be implemented.

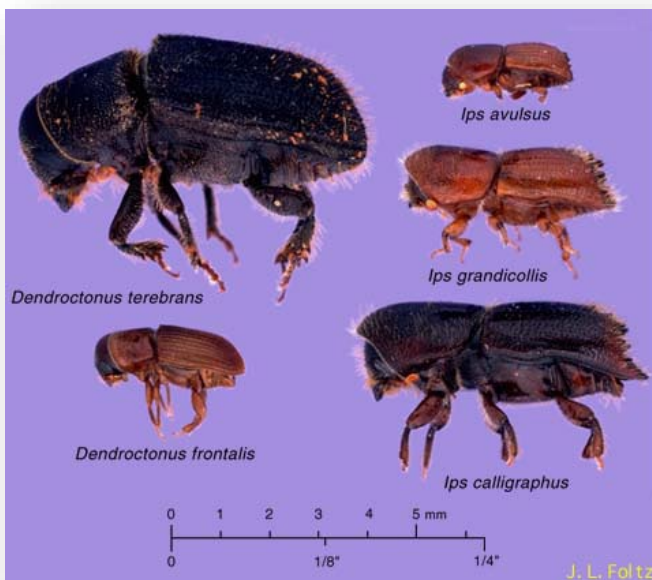
Some of the more common Forest Pests and Invasive Species are:

Emerald Ash Borer - The emerald ash borer (EAB) is an exotic invasive wood-boring beetle native to Asia. Detected in Michigan in 2002, EAB is threatening ash trees throughout North America. As of December, 2014, EAB has been detected in 16 states including southeastern Arkansas and northern Louisiana. EAB larvae feed under the bark of ash trees cutting off the transport of nutrients which results in tree death over a period of several years. The risk to ash trees in Texas is substantial. EAB is difficult to detect and control on a landscape level. Infestations in a stand of ash (genus *fraxinus*) have been complete mortality to date. New and updated information from both state and federal agencies will be periodically reviewed to monitor the spread of EAB and potential new treatment options. Ash trees on a property should be monitored closely for signs and symptoms of EAB.

Adult Emerald Ash Borers



Pine Bark Beetles – There are three primary pine beetles that attack live pine trees in Texas.



Southern pine bark beetles and pitch tubes created during infestation

- The pine engraver beetles (*Ips. spp*) usually breed harmlessly in fresh logging debris and weakened trees and do not kill a significant number of pine trees to be considered a major pest. Attacks are usually very scattered and involve only a few trees in an infestation. However, during times of drought or stress, this scattered pattern may continue and can kill a significant number of trees.
- The black turpentine beetle (*Dendroctonus terebrans*) readily responds to fresh pine sap (resin) associated with injured trees and they may kill the host tree. This beetle is generally not a serious problem in a forest setting.

- The southern pine beetle (*Dendroctonus frontalis*), or SPB, is one of the most destructive pests of pines in the southern United States, Mexico, and Central America; occurring from Pennsylvania to Texas and from New Mexico and Arizona to Honduras. It attacks and can kill all species of pines, but prefers loblolly, shortleaf, Virginia, pond, and pitch pines. These beetles' mass-attack the trunks of mature or over-mature pine trees. The beetles bore through the bark and develop "s-shaped" galleries in the phloem tissue where the eggs are laid, brood and develop. They also introduce a blue-stain fungus into the sapwood that eventually inhibits water flow in the tree. The colonization by the beetles and the fungus combined results in tree death only days after mass-attack. It may take weeks or even months (if attacks are in late fall) for the foliage to fade from green to red. Pitch tubes are often present at the entrance holes made by the beetles. In addition, reddish-yellowish boring dust may also be present in bark crevices or around the base of the tree. Trees attempt to pitch out the beetles and are sometimes successful. Beetle populations will remain at endemic levels for years until populations build up to epidemic levels for a two- or three-year period. Often infestations that show up in the spring do not continue and will die out. However, when populations are high, infestations can expand almost like wildfire within pure pine stands, killing thousands of trees and covering hundreds of acres.

Although natural enemies, such as diseases, parasites, predators and weather, help maintain SPB populations at low levels and bring cyclic outbreaks under control, prevention through good forest management is the best form of control. Forest stands should be thinned two to three times during the rotation keeping trees healthy and vigorous. Over mature and/or overstocked pine stands are most susceptible to attack. Quick action to protect a stand of trees is essential in trying to suppress the infestation. Active infestations can be halted using several cultural tactics such as salvaging all old and new attacks, plus cutting buffer strips of unattacked trees in the direction the spreading infestation. The Texas A&M Forest Service should be contacted for information on current beetle activity and controls.

Gypsy Moth – The gypsy moth is an exotic forest pest that was brought into this country from Europe in 1869. The gypsy moth larva, or caterpillar, feeds aggressively on oak, alder, apple, basswood, willow and birch. As the caterpillars reach maturity, they will also feed on hemlock, cedar, pine and spruce. Eggs hatch in late April and May, and larvae are present for approximately two months. Adult moths are active from late June to early September when mature female moths will deposit their eggs in a buff-colored mass.

Severity of impact from gypsy moth is determined by frequency and intensity of defoliation, tree stress and weather conditions. Generally, severe defoliation and mortality can be expected in stands consisting of a high percentage of oak. Stands with 50%, or greater, content of oak are of high risk and over 20% are of moderate risk.

Harvest recommendations in this plan will increase the health and vigor of the residual trees, making the trees more likely to survive and recover from gypsy moth defoliation and to resist attack from secondary organisms.

At the time of this report no significant forest pest issues were detected or encountered.

INVASIVE SPECIES

Invasive species are any species that are non-native to a particular ecosystem. Many of these species are foreign to North America and, once established in the forest landscape, have the ability to disrupt ecosystem functions, reduce biodiversity, and degrade ecosystem health. Invasive organisms affect the health of not only the Nation's forests and rangelands but also that of the native wildlife, native fish, livestock and even humans.

The **Feral Hog** (*Sus scrofa*) is an invasive mammal species in the southeastern United States that is destructive to both plant and animal species and causes substantial financial damage to farm, forest and rangelands. These mammals also compete with native wildlife for resources and degrade habitat. When encountered on one's property efforts should be made to trap or hunt these destructive animals.



Feral Hogs and their destructive tendency to "root" the soil in and effort to find food.

Invasive plant species in the region include **Chinaberry** (*Melia azedarache*), **Chinese tallowtree** (*Triadica sebifera*), **Japanese honeysuckle** (*Lonicera japonica*), **Japanese climbing fern** (*Lygodium japonicum*), **mimosa** (*Albizia julibrissin*), **tropical soda apple** (*Solanum viarum*), **giant reed** (*Arundo donax*), **Japanese dodder** (*Cuscut japonica* Choisy), **Chinese & European privet** (*Ligustrum sinense* & *vulgare*) and **Asian bamboo** (*Phyllostachys spp.* & *Nandina spp.*). Periodic inspections should be conducted to monitor for the appearance of these plants. If encountered on the property control and elimination actions should be taken to prevent the spread of these species.



*Chinese Tallowtree
with seed pods.*

Invasive Aquatic Species - Although not invasive forest species, **giant salvinia** (*Salvinia molesta*) and **water hyacinth** (*Eichhornia crassipes*) are invasive aquatic species that have the potential to cause severe harm to the waterways of east Texas. Any activities in or near water that potentially may cause the introduction of these species into the waterways should be avoided.

BEST MANAGEMENT PRACTICES

All forestry management operations should follow Best Management Practices as recommended by the Texas A&M Forest Service and outlined in the Texas Forestry Best Management Practices Guide.

Logging and skid road control should be exercised, and their location restricted where specific erosion problems are anticipated. When possible, contractors should follow already established routes and every effort should be made to confine the harvesting to as few skid trails as possible. Log landings should be subject to the same guidelines, restricting both location and number where necessary. Seeding of skid roads and log landings should also be required.

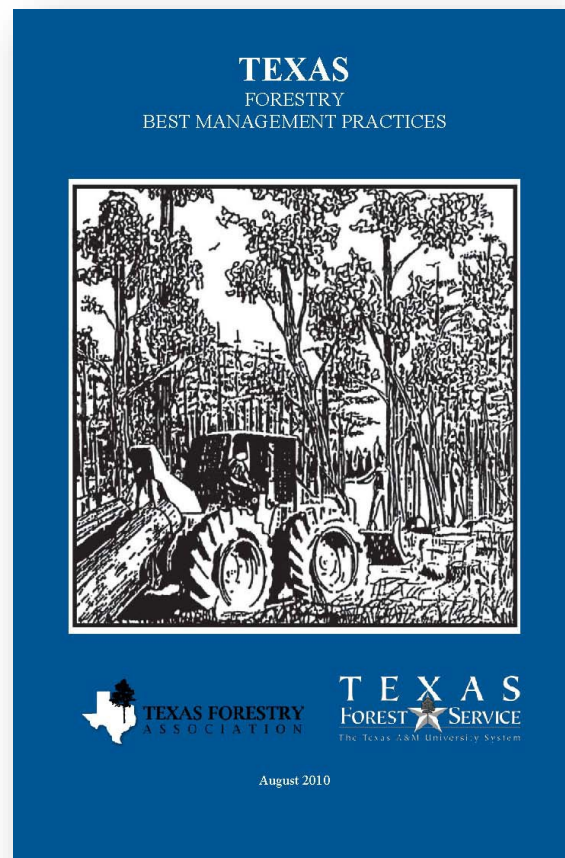
Streamside Management Zones (SMZ's) should be established and maintained for all non-ephemeral, ephemeral, and braded streams, as well as lakes and ponds, in accordance with the guidelines. SMZ's are strips of land immediately adjacent to bodies of water. They provide water quality protection by maintaining bank stability and by filtering water moving into the waterways. Watershed values of stream drainages should be protected by restricting logging traffic in or across them or felling trees into them.

RESTRICTED-USE TIMBERLANDS

There are tax advantages to managing Streamside Management Zones (SMZ's), Aesthetic Management Zones (AMZ's) Critical Wildlife Habitat Areas and Harvested and Regenerated Timberlands in a manner that satisfies the requirements as detailed in the "Manual for the Appraisal of Timberland" as published by the Texas Comptroller's Office.

Aesthetic Management Zones are buffer areas that are managed in such a way to enhance or maintain a wooded visual area. To qualify for the Restricted-Use classification AMZ's must be at least 100' in width but no more than 200' in width along public rights-of-way. The most common public rights-of-way are Federal and State Highways as well as County Roads. These buffers must contain trees that are at least 35 feet tall or at least ten years old and have a tree density of 50 square feet of basal area (the cross-sectional area that of all of the qualified trees occupy on a given acre of land). Forestry activities such as prescribed burning, tree planting and timber harvesting can occur in these areas with restrictions that assure the integrity of the aesthetic value of the AMZ.

Streamside Management Zones are those buffer areas that are managed to protect or enhance a waterway or body of water. To qualify for this Restricted-Use classification SMZ's can vary in width but can be as wide as 200 feet from the bank of a waterway or body of waterway.



Harvesting is restricted in buffers 50 feet from the bank of waterways or bodies of water that contain water at least 30 percent of the year. Harvesting can occur in other instances with restrictions of a minimum of 50 square feet of basal area or 300 well-spaced trees that are at least ten years old, on average per acre. Tree planting, tree improvement, prescribed burning and other such forest management activities are acceptable in these buffer areas.

Critical Wildlife Areas are areas of the forest managed for the protection and enhancement of endangered or threatened species. The existence of the species must be documented by an agreement with a federal, state or private organization responsible for the protection of the species.

Harvested and Regenerated Areas are those areas that are artificially regenerated after a final harvest or naturally regenerated in a seed tree harvest or shelterwood harvest. These areas can also receive a tax advantage if there are adequate stocking levels of newly planted or regenerated trees. This Restricted-Use category has a life span of ten years then tax appraisal levels revert to those of the normal timber appraisal.

NATURAL RESOURCE CONCERNS

Many forest management recommendations are made and practices are carried out in order to address a Natural Resource Concern. Below are a number of Natural Resource Concerns and suggested remedies:

- **Soil Erosion/Degradation**

Do erosion issues exist?

Are these issues limited to roads or do they also occur in wooded areas?

- Best Management Practices should be a part of all agreements made, insisted on and implemented for timber harvesting, tree planting, site preparation and other activities involving heavy equipment.

- **Water Quality**

Are Streamside Management Zones (SMZ's) in place?

Do SMZ's need to be delineated prior to silvicultural operations?

- SMZ's should be painted prior to operations.
- Stream crossings where necessary should be put in place according to Best Management Practice standards.
- Clear instructions should be in contracts and given to contractors and operators of equipment working in these sensitive areas.

- **Plant/Tree Composition**

- Undesirable Plants**

- Is there an excessive amount of yaupon, privet, sweetgum or other undesirable plant species?

- Treatments such as prescribed burning the application of herbicides to the forest understory or mechanical dozing or mulching may be needed.

- Exotic/Invasive Plants**

- Do Exotic or Invasive plant species exist?

- How prominent are they?

- Address exotic or invasive plant species with an herbaceous spot treatment either by foliar application or a cut and herbicide treatment. A broadcast herbicide treatment may be necessary on larger more widespread instances.

- Inadequate Stocking of Desired Plant Species**

- Will changes to the plant community or tree composition better support the desired land use, ecological or economic land use?

- Will soil conditions or soil type support the desired plant stocking and species?

- Recommendations for tree or plant community changes or introductions should take into consideration soil compatibility as well as a variety of landowner objectives which include but are not limited to future economic value, habitat enhancement and aesthetic enhancement to name a few.

- **Hazardous Fuel Levels**

- Are there hazardous fuel levels in the forest?

- Is there a wildfire concern?

- Prescribed Burning or a mechanical treatment such as mulching might be needed.

OTHER GENERAL ACTIVITY PRACTICES

Property Line Maintenance

Having property lines clearly marked and "Posted" will help reduce the possibility of accidental or willful trespass by uninvited hunters, timber cutters and others. The possibility of becoming lost and wandering off of one's property will also be reduced. It will also help ensure that forest management activities are confined to one's own forestland and are not carried over onto the neighbor's property. Property lines should be clearly marked by placement of t-posts, conduit, fencing or the painting with purple paint along the lines. Property lines that are fenced or painted purple are considered posted as per Texas Penal Code, Article 30.05.



Purple Paint means "NO TRESPASSING" in Texas!

Timber Harvests

Timber harvests vary in degree from clear cutting, where all timber is removed with the exception of special use areas as previously discussed, to light thinnings to improve forest health and vitality. All harvests recommended in this plan comply with and are in accordance with practices that are widely accepted as those that are practiced in a long term, sustainable, conservation minded forest management regime.

Prescribed Burning



Prescribed Fire in Stand of Longleaf Pine

Site Preparation

Site Preparation in forestry is the act of preparing a site after final harvest so that the next crop of trees can be properly planted and be given the best chance of survival. Site Preparation activities include such things as chemical applications to control grasses and woody species and/or mechanical procedures such as bulldozer work to clean up a site to allow planting accessibility and burning. These practices allow for access for planting and can also enhance the control of undesirable and competitive plant species. Many of these recommended practices will give the introduced seedlings the best chance at survival in their early years of establishment.

Site preparation activities will often include a combination of these treatments depending on the site, soils and the prior existence of brush and grass species.

Cost Share and Grant Programs

Many cost share and grant programs exist to assist landowners with natural resource management activities.

Prescribed Burning is the artificial introduction of fire in a controlled manner to mimic the act of periodic wildfires that occurred throughout the forests of the United States for millions of years before European settlement. Many of our native forest plant and wildlife species are accustomed to periodic fires and others even thrive with the reintroduction of burning.

Fire promotes forest health by controlling undesirable plant species. Fire releases nutrients into the soil and frees water for residual fire tolerant species. Fire also provides numerous benefits to wildlife. Prescribed burning also reduces the risk of catastrophic wildfire by reducing fuel loads in a forest. Burning also promotes the regeneration of fire tolerant plant species.

The Natural Resource Conservation Service currently administers a cost incentive program, EQIP (Environmental Quality Incentives Program). For more information visit your local NRCS Office or visit the following site:

<http://www.nrcs.usda.gov>

Other grant opportunities often exist for forestry related practices through the United States Forest Service, National Wild Turkey Federation and others.

Where possible and advantageous the landowner will be made aware of and advised about these programs.

The American Tree Farm System - Sustainable Forestry Initiative

The American Tree Farm System (ATFS) is the oldest forest certification in the United States and it's free! With this written management plan, you have fulfilled one of the qualifications.



Good for you. Good for our forests.SM

As the U.S. consumer has become more environmentally aware the assurance that consumable products are made from or consist of products from renewable, sustainable sources has come to the forefront. The Certification gained by membership in the ATFS allows manufacturers of finished wood products to pass on the guarantee of sustainability to the consumer through the Sustainable Forestry Initiative (SFI) Program. ATFS and SFI have become synonymous with sustainability in forest management.

Visit the following internet sites to learn more:

www.treefarmssystem.org

www.sfiprogram.org

FOREST TYPES - DEFINED

Shortleaf Pine

Shortleaf pine (*Pinus echinata*) has the widest range of any southern pine, growing in 22 States ranging from southeastern New Jersey, Pennsylvania, Ohio and Kentucky, south to northern Florida and west through Tennessee and the Gulf States, to southern Missouri, eastern Oklahoma and east Texas.

Although most productive in well-drained sandy loam soils, due to its intolerance to shade and relatively slow early growth shortleaf pine is more common drier, coarser textured, nutrient-deficient soils typical of upland ridges and south-facing slopes. Natural regeneration of shortleaf pine is difficult, depending on overstory density, hardwood understory competition, seedbed condition and the occurrence of fire. Associate species include loblolly pine; white, post, blackjack and southern red oaks; sweetgum, red maple, hickory spp., winged elm and flowering dogwood.

Loblolly Pine

Loblolly pine (*Pinus taeda*) occurs naturally on the Coastal Plain from Delaware southward to Florida and westward to eastern Texas and southern Arkansas. This pine is also present in the Piedmont from southern Maryland and Virginia to Alabama. Extensive planting has not only maintained the original type range but has extended westward and northward.

Loblolly pine occurs on a variety of soils, both on uplands with good drainage and on somewhat poorly drained mineral soils. Wherever a seed source has been available loblolly pine has colonized abandoned fields, areas left bare by severe cutting or fire, and even badly eroded sites.

Abundant but not excessive soil moisture is required for good growth. In river floodplains and in the flatwoods of the lower Coastal Plain, best growth is on deep soils with poor surface drainage but without long-standing water. Inland, on the upper Coastal Plain and Piedmont where topography is rolling and surface drainage is well developed, un-eroded soils with friable subsoil have site indexes of 80 to 100 feet at 50 years.

Loblolly pine is only moderately tolerant to shade and suffers from hardwood root competition. Sweetgum, red maple, elm, sassafras, oaks and hickories may seed in under pines. In the absence of repeated fire or other severe disturbance, a forest that includes many hardwood trees and an undergrowth of woody plants tends to replace the pine. Succession on drier sites is towards upland oaks.

Mixed Hardwoods - Shortleaf Pine –Loblolly Pine

The Mixed Hardwood - Shortleaf Pine – Loblolly Pine forest type occurs in the Piedmont of the southern Appalachian Mountains and the Cumberland Plateau, extends across northern Mississippi and Louisiana, and from northeastern Texas thru eastern Oklahoma and northern Arkansas; growing in generally shallow, coarse textured, well drained soils.

These stands represent a transition from a pine forest to a climax upland oak forest, being uneven-aged with an older pine overstory with a younger hardwood component in the understory.

Natural reproduction of shortleaf pine in these stands is minimal due to its intolerance to shade. In some cases, site disturbances, both natural and man-caused, can create growing spaces and sufficient light for young shortleaf pines to develop.

Tree species commonly found in this forest type are shortleaf pine, loblolly pine, white oak, southern red oak, black oak, red maple, sweetgum, hickory spp., American hornbeam, eastern hophornbeam, winged elm and flowering dogwood.

Plantations

Plantations are the act of man artificially introducing or promoting a certain plant species with plantings. In East Texas pine is king and the majority of plantations are pine, loblolly pine in particular, as the species tends to naturally have the greatest range in sites and the highest growth rate of all southern pine species. Genetically improved and superior trees are most often planted from seed stock that has been improved over the past 60 years in seed orchards and labs throughout the southern U.S.



ABOVE: Mixed Native Hardwood Stand that Covers the Majority of the Madden Tract.

ACREAGE ANALYSIS

The forests on this ownership are an asset that offers continuing forest and wildlife management, and environmental stewardship opportunities. While income can be generated from the forest resource, forest recreation, forest aesthetics and wildlife management practices should be conducted on the ownership collectively to coincide with the landowner's multi-purpose objectives.

Forest stands were inspected for species composition, size, age, overall health, and growing conditions. These forest evaluations were combined with knowledge of current local product market conditions and landowner objectives to formulate future management recommendations. Following are descriptions of the existing land uses and forest covers, along with recommendations for their future management.

Vernon Madden, Michael Madden & Diane Haverland
2024 Acreage Analysis
Polk County, Texas

			Acreage Classification						
Property ID	Legal Description	Account Acreage	Agriculture		Timber			Non-Ag HS/NHS?	Totals
			Nat Past.	Imp Past.	Pine	Mixed	Hardwood		
25858	W. P. Valentine, A-591	40.5					40.5		40.5
70384	J. Parsons, A-481	3.5					3.5		3.5
70774	W. P. Valentine, A-591	12.38					12.38		12.38
									0
									0

Total	Acreage Classification Totals							Grand Total
Appraisal District Acreage	56.38	0	0	0	0	56.38	0	56.38

FOREST MANAGEMENT HISTORY

The forests on this property have a history of silvicultural activities that have been implemented to enhance, protect and grow the timberland resources. The most recent activities and when they were conducted are outlined below.

History

- 1992 – The entire tract was commercially harvested by Kirby Lumber Company. Receipts and documentation of this sale are still held by the Madden family.
- ~2007 – Another timber harvest was conducted around this time. The is evident via 2009 satellite aerial imagery and was ground-truthed during the field visit.
- 2018 to Present – The tract is monitored for trespassing, forest pest and disease outbreaks and invasive species infestations.

FOREST MANAGEMENT RECOMMENDATIONS

The specific Forest Management Recommendations that follow are made with the intention of:

- Maintaining a sustainable ecosystem that provides for sustained timber production so that periodic income can be had while providing various wildlife and recreational opportunities.

The forests on this ownership are an asset that, if managed correctly, can offer a source of revenue, as well as forest management, wildlife management and environmental stewardship opportunities. While income can be generated from the forest resource, forest recreation, forest aesthetics and wildlife management practices should be conducted on the ownership collectively to coincide with the landowner's multi-purpose objectives.

2024 -- 2035 - General

- Continue maintaining property lines and trails for access and firebreaks.
- Monitor for trespass issues.
- Monitor forest for insect or disease outbreaks. Take appropriate action if detected.
- Monitor tract for invasive species. Conduct control measures if necessary.
- It is important to remember that commercial forest management practices (i.e. – timber harvests, prescribed burning, herbicide etc.) increase in pricing and can propose challenges when below approximately 30 acres of property. When attempting to implement some of these practices, it may help to work with neighbors to help increase the workable acreage.

Activity Timeline

2024-2025

- Establish legal ingress/egress to the tract.
- Hire a surveyor to delineate correct boundary lines.
- Chop and blaze boundary lines with purple paint and “No Trespassing” signs.

- This protects you and your property under Texas Penal Code 30.05 from being liable for trespassers on your property. The following guidelines can be found in Texas Penal Code 30.05:
 - *(i) Vertical lines of not less than eight inches of length and not less than one inch in width;*
 - *(ii) Placed so that the bottom of the mark is not less than three feet from the ground or more than five feet from the ground*
 - *(iii) Placed at locations that are readily visible to any person approaching the property and no more than:*
 - *(a) 100 feet apart on forest land; or*
 - *(b) 1,000 feet apart on land other than forest land;*
- There are signs of trespassing from the north, specifically from the Reed tract to the north in which I gained access for this field visit. They are encroaching on your property with their pasture and clearly have a road going into your property although it hasn't been used in a while.

2032

- Evaluate the timber and markets for a selective thinning operation.
 - Operator-select on native or mature pine plantation stands.
 - Basal area goal of 80 square feet/acre.
 - Prioritize good spacing and removal of less desirable trees.
 - Less desirable trees examples: culls, forks, poor form, poor genetics, diseased, damaged etc.
 - Protect residual trees from logging damage.
 - This tract will be very challenging to conduct a timber sale on. It needs a very dry summer season to access many areas and not damage the ground throughout. It is also divided into numerous blocks due to the various creeks running throughout.

2035

- Update Forest Management Plan or convert to the Wildlife Management status.

FOREST MANAGEMENT ACTIVITY RECORD

YEAR

ACTIVITY

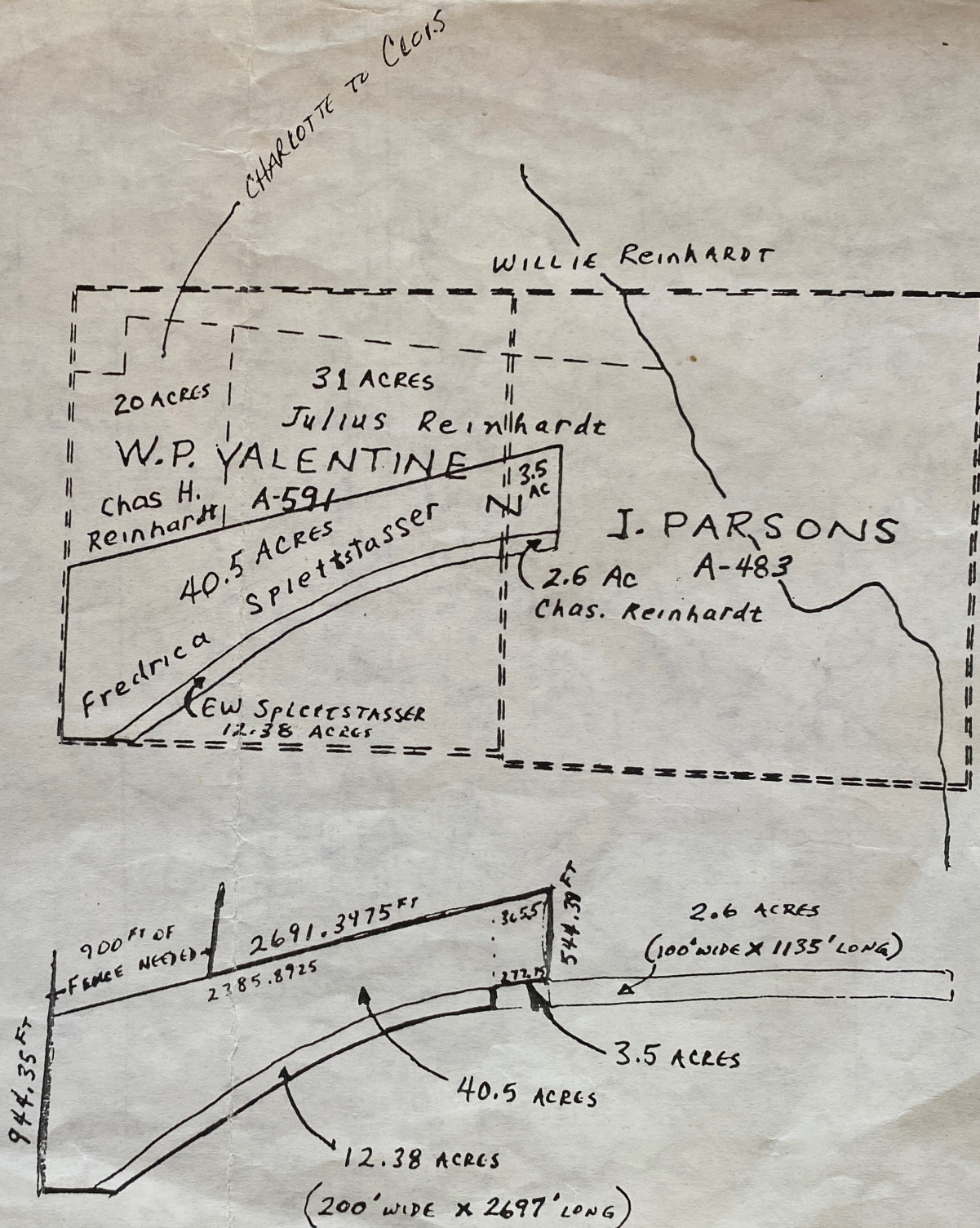
INCOME/EXPENSEThis image shows a single sheet of white paper with horizontal blue ruling lines. The lines are evenly spaced and run across the width of the page. There are no margins, text, or other markings on the paper.

POLK COUNTY
BOOK 1
9N-42E-4

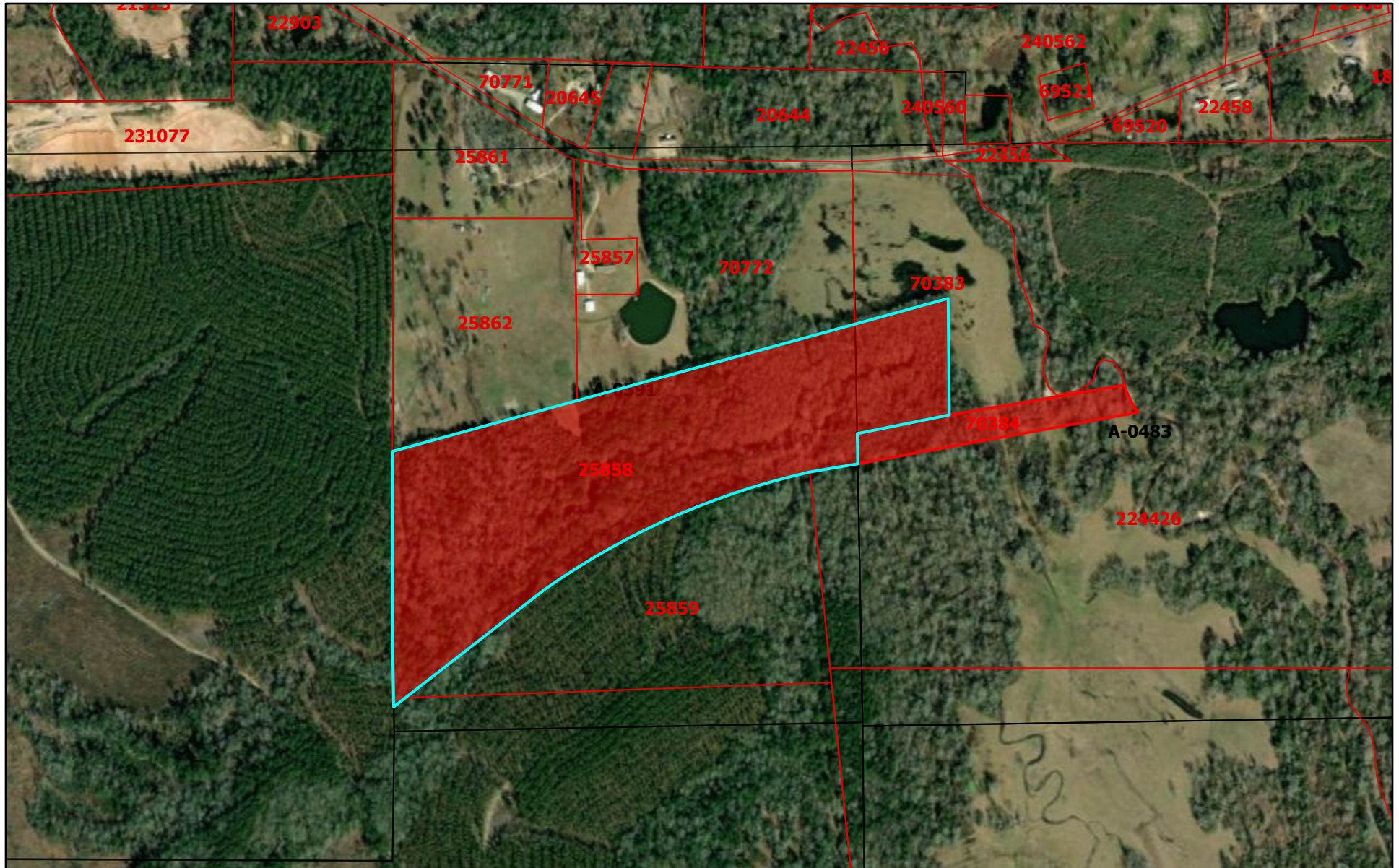
VOL. 114 PAGE 201 JUNE 16, 1937
40.5 ACRES & 3.5 ACRES

VOL. 114 PAGE 141 JULY 15, 1938
14.98 ACRES FROM WBTS RR TO
E.W. SPLETTSTASSER

VOL. 122 PAGE 413
LESS 2.6 ACRES TO C. REINHARDT
MAY. 19, 1941

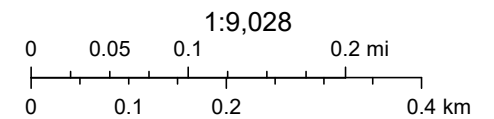


Madden Tract - 56.38 acres

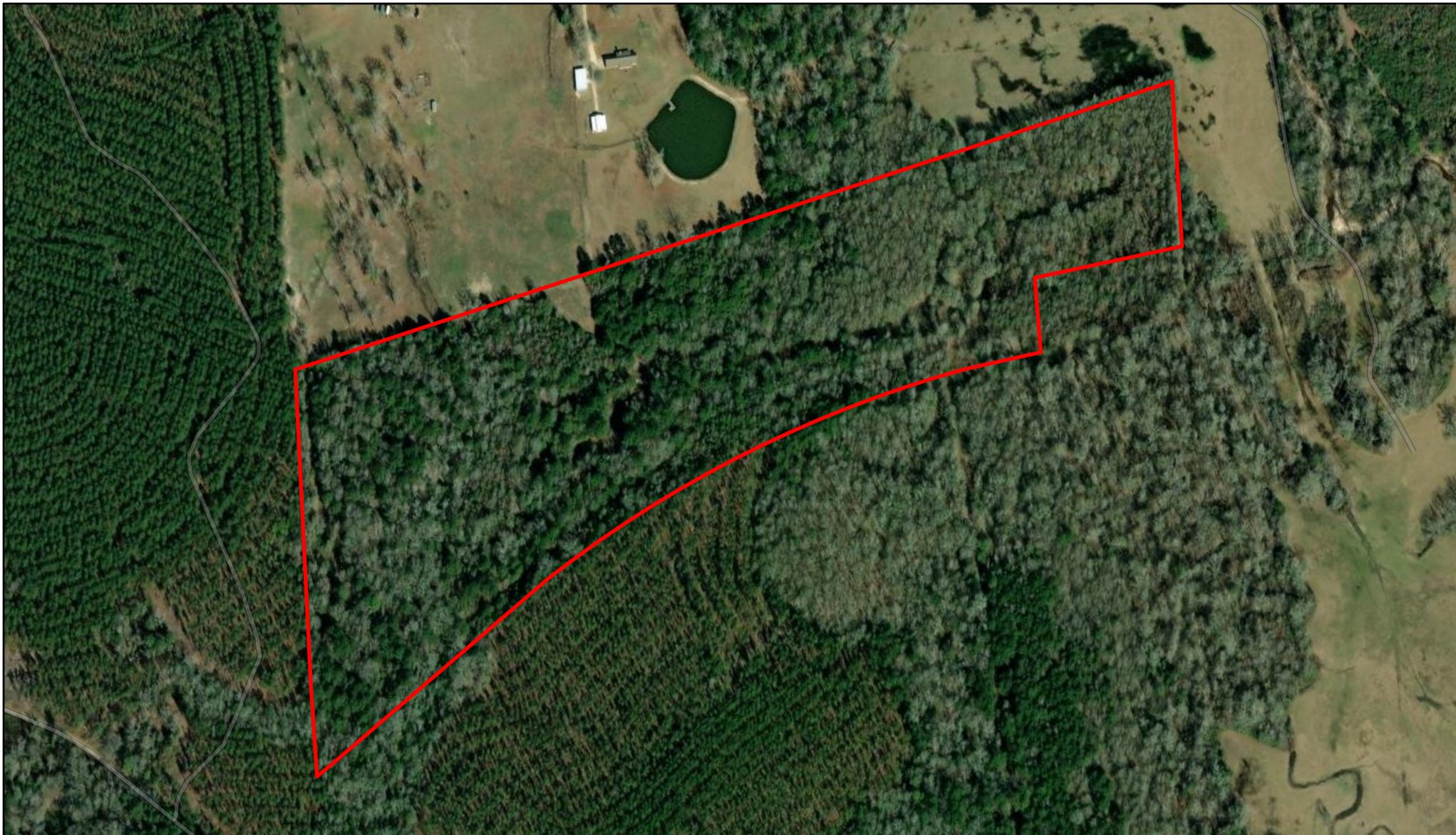


6/21/2024, 11:43:58 AM

Override 1 Parcels Abstracts



Esri, HERE, Garmin, iPC, Maxar





LONE STAR FORESTRY, LLC
1223 11TH STREET
HUNTSVILLE, TX 77340
936-295-2100
WWW.LSFORESTRY.COM





0 100 200 400 600
Feet

MAP DISCLAIMER: This map was generated by Lone Star Forestry, LLC using GIS (Geographic Information System) software and information provided from on the ground observations and third party information. No claims are made to the accuracy or completeness of the data depicted in this map. The information depicted may contain inaccuracies and is provided "as is".

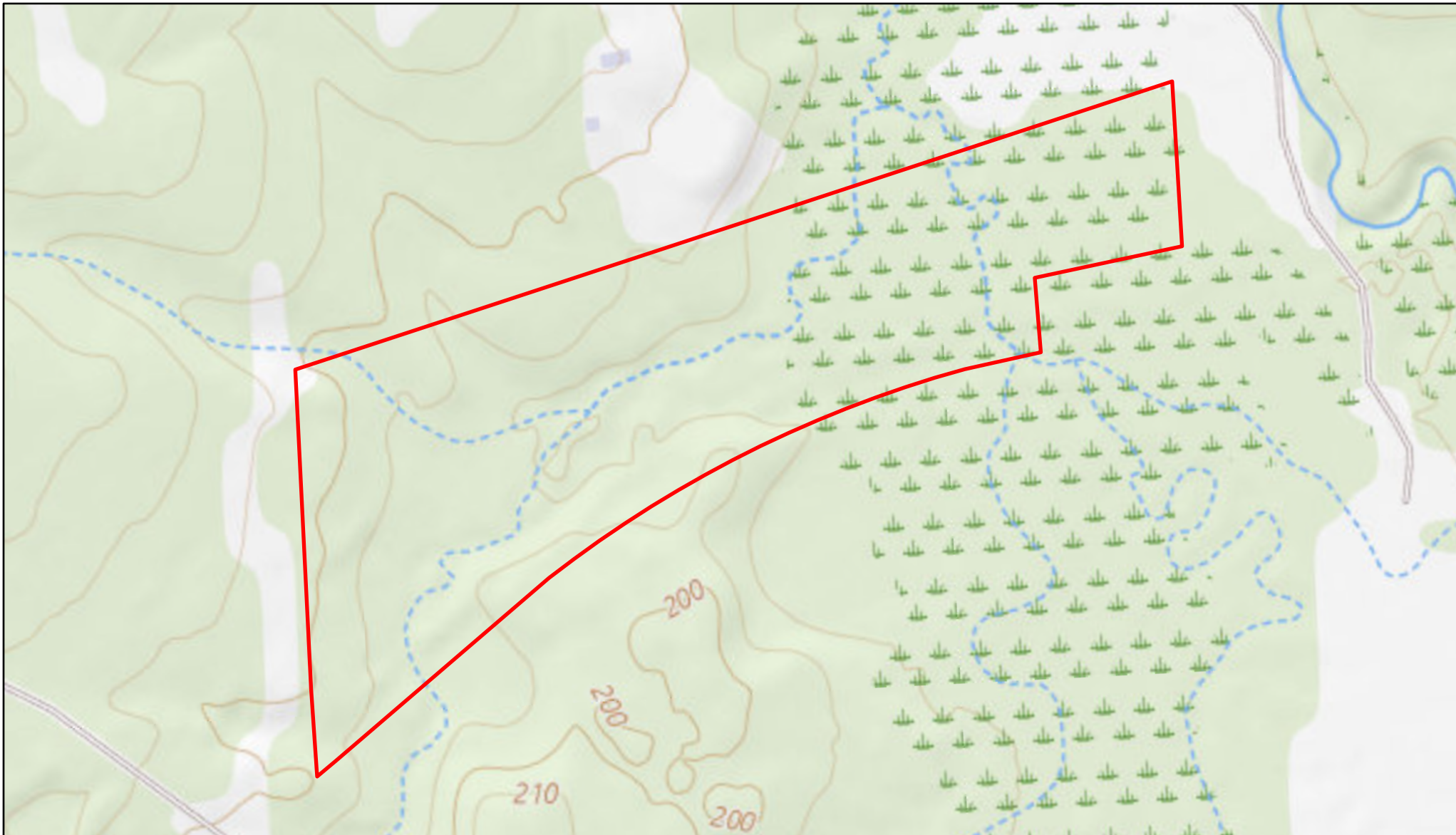


**VERNON MADDEN, MICHAEL MADDEN
& DIANE HAVERLAND**

**56.38 ACRES
(ONLY 43.4 ACRES MAPPED, NEEDS TO BE SURVEYED)**

**W. P. VALENTINE SURVEY, A-591
J. PARSONS SURVEY, A-481
POLK COUNTY, TEXAS
94°45'53"W 31°0'31"N**

**AERIAL: 1/12/2023
CREATED: 6/21/2024**





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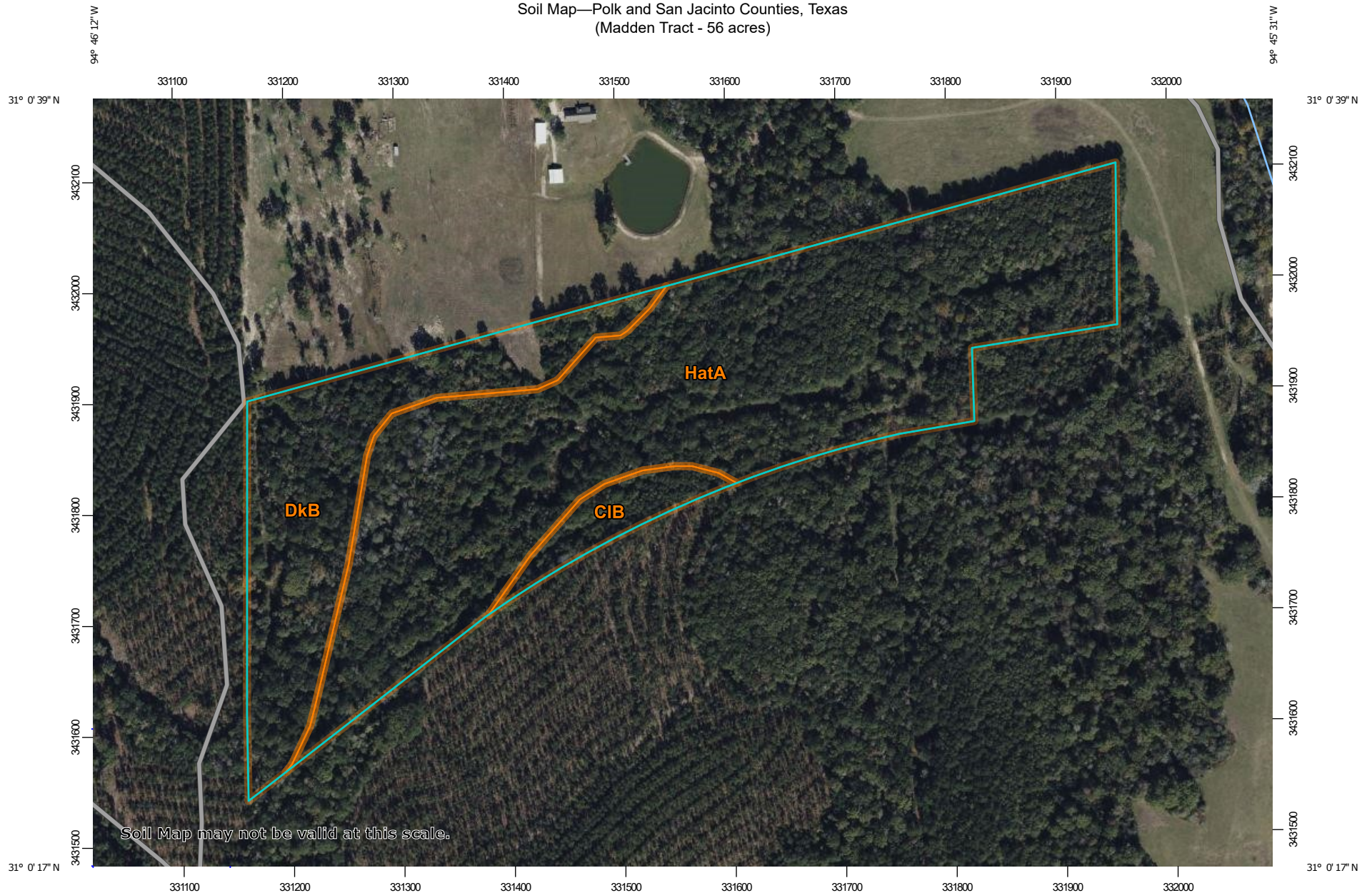
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 POLK COUNTY, TEXAS
 94°45'53"W 31°0'31"N**

**AERIAL: USGS TOPOGRAPHIC
 CREATED: 6/21/2024**

Soil Map—Polk and San Jacinto Counties, Texas
(Madden Tract - 56 acres)



Soil Map may not be valid at this scale.

Map Scale: 1:4,880 if printed on A landscape (11" x 8.5") sheet.

0 50 100 200 300 Meters

0 200 400 800 1200 Feet

Map projection: Web Mercator Corner coordinates: WGS84 Edge tics: UTM Zone 15N WGS84



Natural Resources
Conservation Service

Web Soil Survey
National Cooperative Soil Survey

6/21/2024
Page 1 of 3

Soil Map—Polk and San Jacinto Counties, Texas
(Madden Tract - 56 acres)

MAP LEGEND

Area of Interest (AOI)

 Area of Interest (AOI)

Soils

 Soil Map Unit Polygons

 Soil Map Unit Lines

 Soil Map Unit Points

Special Point Features



Blowout



Borrow Pit



Clay Spot



Closed Depression



Gravel Pit



Gravelly Spot



Landfill



Lava Flow



Marsh or swamp



Mine or Quarry



Miscellaneous Water



Perennial Water



Rock Outcrop



Saline Spot



Sandy Spot



Severely Eroded Spot



Sinkhole



Slide or Slip



Sodic Spot



Spoil Area



Stony Spot



Very Stony Spot



Wet Spot



Other



Special Line Features

Water Features



Streams and Canals

Transportation



Rails



Interstate Highways



US Routes



Major Roads



Local Roads

Background



Aerial Photography

MAP INFORMATION

The soil surveys that comprise your AOI were mapped at 1:24,000.

Warning: Soil Map may not be valid at this scale.

Enlargement of maps beyond the scale of mapping can cause misunderstanding of the detail of mapping and accuracy of soil line placement. The maps do not show the small areas of contrasting soils that could have been shown at a more detailed scale.

Please rely on the bar scale on each map sheet for map measurements.

Source of Map: Natural Resources Conservation Service

Web Soil Survey URL:

Coordinate System: Web Mercator (EPSG:3857)

Maps from the Web Soil Survey are based on the Web Mercator projection, which preserves direction and shape but distorts distance and area. A projection that preserves area, such as the Albers equal-area conic projection, should be used if more accurate calculations of distance or area are required.

This product is generated from the USDA-NRCS certified data as of the version date(s) listed below.

Soil Survey Area: Polk and San Jacinto Counties, Texas

Survey Area Data: Version 22, Sep 5, 2023

Soil map units are labeled (as space allows) for map scales 1:50,000 or larger.

Date(s) aerial images were photographed: Nov 17, 2022—Nov 27, 2022

The orthophoto or other base map on which the soil lines were compiled and digitized probably differs from the background imagery displayed on these maps. As a result, some minor shifting of map unit boundaries may be evident.

Map Unit Legend

Map Unit Symbol	Map Unit Name	Acres in AOI	Percent of AOI
CIB	Colita-Laska complex, 1 to 5 percent slopes	1.9	4.4%
DkB	Diboll-Keltys complex, 1 to 5 percent slopes	10.4	24.0%
HatA	Hatliff-Pluck-Kian complex, 0 to 1 percent slopes, frequently flooded	31.1	71.6%
Totals for Area of Interest		43.4	100.0%

Forestland Productivity

This table is designed to assist forestland owners or managers in planning the use of soils for wood crops. It provides the potential productivity of the soils for wood crops.

Potential productivity of merchantable or *common trees* on a soil is expressed as a site index and as a volume growth rate number. The *site index* is the average height, in feet, that dominant and codominant trees of a given species attain in a specified number of years. The site index applies to fully stocked, even-aged, unmanaged stands. *Common trees* are those that forestland managers generally favor in intermediate or improvement cuttings. They are selected on the basis of growth rate, quality, value, and marketability. More detailed information regarding site index is available in the "National Forestry Manual," which is available in local offices of the Natural Resources Conservation Service or on the Internet.

The *Base Age* is the age of trees in years on which the site index is based. "TA" indicates total age. "BH" indicates breast height age. "N/A" indicates that base age is not applicable.

The *Site Index Curve Number* is listed in the National Register of Site Index Curves. It identifies the site index curve used to determine the site index.

The *Volume Growth Rate* is the maximum wood volume annual growth rate likely to be produced by the tree species. This number, expressed as cubic feet per acre per year, is calculated at the age of culmination of the mean annual increment (CMAI). It indicates the maximum volume of wood fiber produced per year in a fully stocked, even-aged, unmanaged stand.

Reference:
United States Department of Agriculture, Natural Resources Conservation Service, National Forestry Manual.

Report—Forestland Productivity

Forestland Productivity—Polk and San Jacinto Counties, Texas				
Map unit symbol and soil name	Potential productivity			Trees to manage
	Common trees	Site Index	Volume of wood fiber	
			Cu ft/ac/yr	
CIB—Colita-Laska complex, 1 to 5 percent slopes				
Colita	Loblolly pine	79	108.00	Loblolly pine, Slash pine
	Longleaf pine	82	100.00	
	Southern red oak	—	—	
	Sweetgum	—	—	
Laska	Loblolly pine	90	131.00	Loblolly pine, Slash pine
	Shortleaf pine	80	129.00	
	Slash pine	90	157.00	

Forestland Productivity--Polk and San Jacinto Counties, Texas				
Map unit symbol and soil name	Potential productivity			Trees to manage
	Common trees	Site Index	Volume of wood fiber	
			<i>Cu ft/ac/yr</i>	
DkB—Diboll-Keltys complex, 1 to 5 percent slopes				
Diboll	Elm	—	—	Loblolly pine, Slash pine, Water oak
	Loblolly pine	80	110.00	
	Shortleaf pine	70	114.00	
	Southern red oak	—	—	
	Water oak	—	—	
	Willow oak	80	72.00	
Keltys	Loblolly pine	85	120.00	Loblolly pine
	Shortleaf pine	76	114.00	
	Southern red oak	—	—	
	Sweetgum	—	—	
HatA—Hatliff-Pluck-Kian complex, 0 to 1 percent slopes, frequently flooded				
Hatliff	Loblolly pine	95	142.00	Loblolly pine, Slash pine
	Slash pine	—	—	
	Sweetgum	—	—	
	Water oak	—	—	
	Willow oak	—	—	
Pluck	Loblolly pine	90	131.00	Cherrybark oak, Green ash, Loblolly pine, Sweetgum, Water oak
	Sweetgum	90	100.00	
	Water oak	—	—	
Kian	Loblolly pine	95	142.00	Eastern cottonwood, Loblolly pine, Sweetgum
	Sweetgum	88	100.00	
	Water oak	95	86.00	

Data Source Information

Soil Survey Area: Polk and San Jacinto Counties, Texas

Survey Area Data: Version 22, Sep 5, 2023

LONE STAR FORESTRY, LLC

WAYNE S. PFLUGER, ACF, CF, TAF - PRESIDENT



Wayne S. Pfluger is a 1988 Texas A&M University graduate holding a B.S. in Forestry. Pfluger began his professional career in 1988 with Kirby Forest Industries as a Management Forester assisting in the day-to-day management of Kirby's vast East Texas timber holdings. Kirby was soon purchased by Louisiana-Pacific Corporation and Pfluger was moved to New Waverly, Texas where he worked with private landowners in a Landowner Assistance Program. In 1999 Pfluger left forest industry and went to work for Gibbs Brothers & Company, a family-owned partnership in Huntsville, Texas, where along with the management of their forests he managed their cattle and hunting operations and extensive mineral holdings. In September of 2003 Pfluger transitioned his work focus and created Lone Star Forestry, LLC. which he remains the owner of today.

Pfluger is an Active and Engaged member of the following organizations:

- Texas Forestry Association (1988–present)
 - Board of Directors - 2004-2007, 2013-2014
- Prescribed Burn Managers Council of Texas (2012 – present)
 - Chairman - 2012-2014
- Texas Department of Agriculture Prescribed Burn Board – Appointed Position
 - 2017-present
- American Tree Farm System Certified Inspector (1999 - present)
 - State Chair - 2010-2011
- Society of American Foresters – Certified Forester (CF) (1988 – present)
 - Brazos/Trinity Chapter Chair - 2001
- Association of Consulting Foresters (ACF) (2006 – present)
 - State Chapter Chair - 2011-2013
 - Gulf Director - 2017-2020
 - National President Elect - 2020-2022
 - National President – 2022-2024
 - National Past President – 2024 - Present
- American Association of Petroleum Landmen (2000 – present)

Certifications:

- Society of American Foresters – Certified Forester (CF) - #56815
- Texas Forestry Association - Texas Accredited Forester (TAF) - #38
- Texas Department of Agriculture - Texas Certified and Insured Prescribed Burn Manager – 0476806
- American Forest Foundation - American Tree Farm System Certified Inspector – 18749
- United States Department of Agriculture – Technical Service Provider – 09-06457

Awards & Recognitions:

- American Tree Farm System
 - Southern Region Inspector of the Year – 2009, 2024
 - Tree Farm Inspector of the Year - 2008, 2012, 2014, 2019, 2021, 2022, 2023.
 - State of Texas Tree Farm of the Year Award Recipients under Management – 1982, 2000, 2008, 2013, 2022, 2024
- Society of American Foresters
 - Texas Outstanding Forester of the Year - 2001
- Soil & Water Conservation Districts of Texas
 - Forestry Conservationist of the Year – 2009

Lone Star Forestry, LLC specializes in a variety of forest management activities which include timber sales, timber inventories, timber appraisals, forest management planning, site preparation, tree planting, herbicide applications and prescribed burning. The company also assists clients in many other aspects of land and property management which include the management of their mineral estates, property sales and acquisitions, easement and right of way issues for electrical lines, water lines and hydrocarbon pipelines, property tax work, hunting and grazing leases and a variety of other property concerns.

LONE STAR FORESTRY, LLC

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